

# **TENTATIVE RULING FOR August 10, 2026**

## **Department S22 – Judge David Driscoll**

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**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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**CIVSB2125587**

**Erik Pereida v. Ricardo Gallorobles individually and dba Anaheim Transport, et.al.**

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### **TENTATIVE RULING**

These three consolidated actions concern personal injuries sustained in an automobile accident. The cases sounding in negligence were consolidated on April 20, 2023. The consolidated Complaints allege that on December 3, 2019, on Palmdale Rd., near Diamond Rd., Victorville, a collision occurred between Ricardo Gallorobles and Erik Pereida. Plaintiffs Johnson and Ibarra-Calvillo were passengers in the Pereida vehicle.

Currently before this Court is a motion by Plaintiff Erik Pereida seeking to quash Defendant Ricardo Gallorobles's trial subpoenas for Pereida's medical records regarding treatment, blood draws, laboratory results, and alcohol testing from Arrowhead Regional Medical Center, as well as commanding appearances of the custodian of records producing said records and a PMK re Alcohol Test (ETOH Analysis) to produce records pertaining to the alcohol testing performed on Pereida and Laboratory Discovery Packet/Litigation Data Packet at trial.

### **Statement of Law**

Code Civ. Proc., §1985, entitled "Subpoena" Issuance, Affidavit, states:

- (a) The process by which the attendance of a witness is required is the subpoena. It is a writ or order directed to a person and requiring the person's attendance at a particular time and place to testify as a witness. It may also require a witness to bring any books, documents, electronically stored information, or other

things under the witness's control which the witness is bound by law to produce in evidence. When a county recorder is using the microfilm system for recording, and a witness is subpoenaed to present a record, the witness shall be deemed to have complied with the subpoena if the witness produces a certified copy thereof.

- (b) A copy of an affidavit shall be served with a subpoena duces tecum issued before trial, showing good cause for the production of the matters and things described in the subpoena, specifying the exact matters or things desired to be produced, setting forth in full detail the materiality thereof to the issues involved in the case, and stating that the witness has the desired matters or things in his or her possession or under his or her control.
- (c) The clerk, or a judge, shall issue a subpoena or subpoena duces tecum signed and sealed but otherwise in blank to a party requesting it, who shall fill it in before service. An attorney at law who is the attorney of record in an action or proceeding, may sign and issue a subpoena to require attendance before the court in which the action or proceeding is pending or at the trial of an issue therein, or upon the taking of a deposition in an action or proceeding pending therein; the subpoena in such a case need not be sealed. An attorney at law who is the attorney of record in an action or proceeding, may sign and issue a subpoena duces tecum to require production of the matters or things described in the subpoena.

Code Civ. Proc., § 1985.3, entitled Subpoena duces tecum for production of personal records; Definitions; Application of section states in part:

(b) Prior to the date called for in the subpoena duces tecum for the production of personal records, the subpoenaing party shall serve or cause to be served on the consumer whose records are being sought a copy of the subpoena duces tecum, of the affidavit supporting the issuance of the subpoena, if any, and of the notice described in subdivision (e), and proof of service as indicated in paragraph (1) of subdivision (c). This service shall be made as follows:

- (1) To the consumer personally, or at his or her last known address, or in accordance with Chapter 5 (commencing with Section 1010) of Title 14 of Part 3, or, if he or she is a party, to his or her attorney of record. If the consumer is a minor, service shall be made on the minor's parent, guardian, conservator, or similar fiduciary, or if one of them cannot be located with reasonable diligence, then service shall be made on any person having the care or control of the minor or with whom the minor resides or by whom the minor is employed, and on the minor if the minor is at least 12 years of age.
- (2) Not less than 10 days prior to the date for production specified in the subpoena duces tecum, plus the additional time provided by Section 1013 if service is by mail.
- (3) **At least five days prior to service upon the custodian of the records, plus the additional time provided by Section 1013 if service is by mail.**

Code Civ. Proc., § 1987.1, entitled Order to Quash, Modify or Limit Subpoena, subdivision (a), states:

If a subpoena requires the attendance of a witness or the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violation of the right of privacy of the person.

A party, witness, consumer, employee, or person whose personal identifying information is sought may bring the motion. (Code of Civ. Proc., §1987.1, subd. (b).) If a party seeks to subpoena personal records, then the party must serve the consumer a notice along with a copy of the subpoena. (Code Civ. Proc.,

§1985.3, subd. (b) and (e).) The party-consumer whose records are sought may move to quash or modify the subpoena under Code of Civil Procedure section 1987.1. (Code Civ. Proc., §1985.3, subd. (g).) Five days before production, the deposition officer and witness are to be given notice of the motion. (Code Civ. Proc., §1985.3, subd. (g).)

### **Arguments of the Parties**

#### *Plaintiff's Motion.*

The trial subpoenas at issue were served on one of Plaintiff's counsel via US Mail on May 12, 2026, and the rest of the attorneys in this matter on May 13, 2026. The motion is based on the grounds that:

1. The subpoenas are procedurally defective and are not accompanied by a notice to consumer.
2. The subpoenas seek constitutionally protected private medical information.
3. The subpoenas are cumulative and unnecessary as Defendant already possesses Plaintiff's medical records.
4. The subpoenas constitute misuse of trial subpoena power at a late stage of discovery.

The plaintiff maintains that the subpoenas must be quashed because Defendants failed to comply with the mandatory consumer notice procedures required by Code Civ. Proc., § 1985.3. This section governs subpoenas seeking personal records of a consumer from a third-party custodian of records. Medical providers are custodians of consumer records within the meaning of the statute. Code Civ. Proc., § 1985.3(a)(1). Medical records, billing records, and radiological records constitute personal records protected by the statute. Code Civ. Proc., § 1985.3, subd. (b), requires that before a subpoena seeking consumer records may be served on a third-party custodian, the subpoenaing party must first serve the consumer with a Notice to Consumer together with a copy of the subpoena and the statutorily required notice language. The statute further requires that the Notice to Consumer be served at least five (5) days prior to the service of the subpoena on the custodian of records, with additional time required if service is by mail. Code Civ. Proc., §1985.3(b)(3); Code Civ. Proc., § 1013.

It is argued that these notice requirements are mandatory and are intended to provide the consumer with a meaningful opportunity to object or move to quash the subpoena before private records are produced. (*Board of Trustees v. Superior Court* (1981) 119 Cal.App.3d 516, 525 [recognizing statutory protections governing disclosure of confidential records].) This statutory procedure ensures that individuals have an opportunity to protect their privacy interests before their personal records are disclosed.

In support of the motion to quash, Benjamin A. Azizian, Esq. submitted a declaration, which states in pertinent part:

2. On May 13, 2026, I was served via email, with the two trial subpoenas which indicated my co-counsel was served via US Mail. The Trial Subpoenas were each sent concurrently in the same pdf file as their respective Notice to Consumer. No notice to consumer was ever served at any time with or prior to the service of the subpoenas. A true and correct copy of the email serving the subpoenas and notice to consumer concurrently, along with the documents are attached hereto as Exhibit 1.
3. On May 18, 2026, counsel for Defendants Erik Pereida and Arisbe Pereida served objections to the deposition subpoenas as untimely and requesting they be withdrawn. A true and correct copy of the email exchange is attached hereto as Exhibit 2.

4. On May 21, 2026, Defendants responded to the email indicating that the subpoenas are trial subpoenas and that they will not be withdrawing them. A true and correct copy of the email exchange is attached hereto as Exhibit 2.

5. On June 3, 2026, I attempted to meet and confer first over email and later over the phone to avoid motion practice, but Defendants were unwilling to withdraw the subpoenas. A true and correct copy of the email exchange is attached hereto as Exhibit 3.

*Defendants' Opposition.*

Defendants position is that this lawsuit arises out of a motor vehicle accident that occurred on December 3, 2019 at approximately 3:30 a.m. in Victorville, California when Plaintiff Erik Pereida's vehicle carrying passengers Destiny Ibarra-Calvillo, Sara Johnson, and Jay Rodriguez collided with Defendant Ricardo Gallorobles' rear-trailer. Plaintiff was transported to Arrowhead Regional Medical Center ("ARMC") where he was given emergency treatment and lab results revealed his blood alcohol level of 0.176. There is no dispute that Plaintiff Pereida drank the evening of the collision, but there is a dispute as to the amount of alcohol Plaintiff Pereida consumed.

Defendant's subpoenas requests the following categories of documents:

- All documents reflecting any alcohol testing (ETOH Analysis) of Plaintiff/Defendant/Cross-Defendant ERIK BRANDON PEREIDA (D.O.B. 08/22/1999) for dates of service December 3, 2019 through December 4, 2019 including blood draws and laboratory results;
- The entire Laboratory Discovery Packet/Litigation Data Packet: A litigation data package includes all the documents that support the laboratory results posted to the doctors. This includes the sample collection (by nurse or phlebotomist), sample laboratory accession, analyzer calibration, quality control results, quality assurance measures such as participation in the College of American Pathologists Proficiency Testing Program (CAP PT) and Laboratory Accreditation (CAP). It may also include the laboratory standard operating procedures, the package inset for the reagents/products purchased for doing the alcohol test, outside proficiency testing results for the time of the testing, the laboratories certifications and licenses and the CVs of the persons who did the testing or reviewed the results (CLS clinical lab scientists).

Defendants maintain that Plaintiff's lawsuit seeks compensation for bodily injuries and other economic and non-economic damages he attributes to the collision on December 3, 2019. Due to these allegations, Defendants argue that Plaintiff has put his own medical condition at issue, particularly his blood alcohol concentration (BAC) test and laboratory results. The information requested is both relevant and pertinent to not only the allegations raised in the operative pleading, but in assessing issues of liability, causation, and damages.

The subject trial subpoenas are for: (1) the Person Most Knowledgeable regarding Alcohol Testing (ETOH Analysis) at ARMC; and (2) the Custodian of Records at ARMC. The testimony and the documents subject to the subpoenas are relevant. Plaintiff moves to quash the subpoenas for his records from Arrowhead Regional Medical Center from the date of the incident on the grounds that they invade his constitutionally-protected right to privacy. However, the constitutional right to privacy is not absolute and the information sought is directly relevant. (*Mendez v. Superior Court* (1988) 206 Cal.App.3d 557, 568, 576.)

The Defendants assert that California law relating to trial subpoenas is long established:

"In the case of a trial subpoena, section 1985, subdivision (b) requires that '[a] copy of an affidavit shall be served with a subpoena duces tecum issued before trial, showing good cause for the

production of the matters and things described in the subpoena, specifying the exact matters or things desired to be produced, setting forth in full detail the materiality thereof to the issues involved in the case, and stating that the witness has the desired matters or things in his or her possession or under his or her control.”

(*Terry v. SLICO* (2009) 175 Cal.App.4th 352, 356.)

Defendant’s subpoena issued May 12, 2026, and served May 13, 2026, using the Judicial Council Form includes the requisite affidavit and expressly sets forth the good cause for the production of Plaintiff’s medical records from Arrowhead Regional Medical Center. Plaintiff Pereida was given at least 26 days to review and respond to the subpoenas. As such, there is no prejudice, and there is no prejudice in the Notice to Consumer being served simultaneously with the subpoena as the subpoena provides the description of items sought which would undoubtedly influence whether an objection is necessary.

As to the Plaintiff’s privacy objections, Defendants argue that they should be deemed waived. On December 5, 2025, Plaintiff Ibarra issued a deposition subpoena for the production of documents and appearance of the Person Most Knowledgeable at ARMC’s Main Laboratory, and specifically seeking substantially the same records of Plaintiff Pereida’s blood alcohol testing results. (Stoker Decl. ¶ 11, Ex. H.) Despite this, Plaintiff Pereida did not object to the deposition subpoena in any manner and the deposition—as well as the production—proceeded on February 17, 2026, with attorneys Benjamin Azizian, Brian Goldberg, and Keith Moreton all appearing on behalf of Plaintiff Pereida either in his capacity as a plaintiff or named defendant. (Stoker Decl. ¶ 12.) Based on this fact alone, Plaintiff Pereida should be deemed to have waived.

Frederick L. Stoker, III, Esq. submitted a declaration stating in part:

9. On December 18, 2023, Plaintiff Pereida submitted to deposition via remote videoconferencing in connection with this action. Attached hereto as Exhibit F are true and correct copies of excerpts from the deposition transcript.

10. On June 23, 2025, Plaintiff Pereida filed an Opposition to Plaintiff Ibarra’s Motion to Quash Plaintiff Pereida’s Subpoena for Medical Records. Attached hereto as Exhibit G is a true and correct copy of Plaintiff Pereida’s Opposition.

11. On December 5, 2025, plaintiff Destiny Ibarra-Calvillo (“Plaintiff Ibarra”) issued an amended deposition subpoena and notice to consumer seeking the testimony and records from the Person Most Knowledgeable of ARMC’s Main Laboratory, relating to Plaintiff Pereida’s blood alcohol testing. Attached hereto as Exhibit H is a true and correct copy of the Amended Deposition Subpoena.

12. Plaintiff Pereida did not object to the Amended Deposition Subpoena in any manner and the deposition—as well as the production—proceeded on February 17, 2026, with attorneys Benjamin Azizian, Brian Goldberg, and Keith Moreton all appearing on behalf of Plaintiff Pereida either in his capacity as a plaintiff or named defendant.

*Request for Judicial Notice.*

With the opposition, Defendant Ricardo Gallorobles seeks to have the Court take judicial notice of the following:

1. The Complaint filed on November 30, 2021, by Plaintiff Erik Pereida, in this action and attached hereto as well as to the accompanying Declaration of Frederick L. Stoker III as Exhibit A.

2. The complaint filed on December 3, 2021, by Plaintiff Destiny Ibarra-Calvillo, in this action and attached hereto as well as to the Declaration of Frederick L. Stoker III as Exhibit B.
3. Plaintiff Sara Johnson's amendment to complaint filed on October 4, 2022, identifying Plaintiff Erik Brandon Pereida as defendant "DOE 2" in this action. Attached hereto as well as to the accompanying Declaration of Frederick L. Stoker III as Exhibit C.
4. The June 23, 2025, Opposition to Plaintiff Destiny Ibarra-Calvillo's Motion to Quash [Plaintiff]'s Subpoena for Medical Records filed by Plaintiff Erik Pereida. Attached hereto as well as to the accompanying Declaration of Frederick L. Stoker III as Exhibit G.

While the existence of any document in a court file may be judicially noticed, the truth of matters asserted in such documents – including the factual findings of the judge who was sitting as the trier of fact – is not necessarily subject to judicial notice unless the document is an order, statement of decision, or judgment. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1569; *Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 22.) The Court takes judicial notice of the above requests pursuant to Evid Code, §452, subd. (d), as to their filing, however, the Court cannot take judicial notice of the truth of the content of the documents.

### **Analysis.**

Plaintiff argues that the subpoenas invade his privacy interest in matters unrelated to the litigation. Individuals have a constitutional right of privacy that protects their information. (*Williams v. Superior Court (Marshalls of CA, LLC)* (2017) 3 Cal.5th 531, 552 [*"Williams"*].) A privacy interest is invaded if there is "a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious." (*Ibid.*; *Hill v. National Collegiate Athletic Assn* (1994) 7 Cal.4th 1, 35-37.) Of course, the constitutional right to privacy is not absolute. (*John B. v. Superior Court (Bridget B.)* (2006) 38 Cal.4th 1177, 1199 [*"John B."*].)

Under the *Hill* factors, an individual has a privacy interest in his medical treatment and medical information. (*John B.*, *supra*, 38 Cal.4th at p. 1198; *County of Los Angeles v. Superior Court (Johnson & Johnson)* (2021) 65 Cal.App.5th 621, 641.) However, a party waives any privacy interest as to the claims asserted. (*Vinson v. Superior Court (Peralta Community College District)* (1987) 43 Cal.3d 833, 842; *Britt v. Superior Court* (San Diego Port District) (1978) 20 Cal.3d 844, 863-64.)

The material sought is relevant and pertinent to this litigation. The subject subpoenas only seek:

All documents reflecting the examination and medical treatment of Plaintiff/Defendant/Cross-Defendant ERIK BRANDON PEREIDA (D.O.B. 08/22/1999) for dates of service December 3, 2019 through December 4, 2019 including blood draws and laboratory results.

Plaintiff/Defendant/Cross-Defendant ERIK BRANDON PEREIDA (D.O.B. 08/22/1999) brought the instant lawsuit alleging causes of action for negligence against Defendants RICARDO GALLOROBLES and AME CONSTRUCTION, INC. and through discovery admitted to consuming alcohol prior to driving his vehicle at the time of the subject motor vehicle collision but disputes the amount of alcohol consumed. The requested documents are necessary to establish the amount of alcohol found in ERIK BRANDON PEREIDA'S blood following the collision as it is disputed how much alcohol he consumed.

Accordingly, the information is relevant and discoverable, especially since Plaintiff is bringing this action for personal injuries and the records relate directly to his treatment for those injuries. As to the BAC testing performed at ARMC, the Plaintiff has placed his sobriety in issue by disputing the amount of alcohol consumption. The court is cognizant that plaintiff may have arguments as to the *admissibility* of

the BAC test results, but that is not a factor for requiring production of subpoenaed documents at trial. Admissibility will be determined by the court at the time of trial. The requests are limited in time to the date of the accident and to the time Plaintiff was treated in the hospital. Plaintiff testified at deposition that he: (1) was treated at ARMC following the collision; (2) did not believe he had ever been treated at ARMC other than for the collision; and (3) was truthful when answering questions from the hospital staff and doctors. (Stoker Decl. ¶ 9, Ex. F at 96:3 – 98:18.) Based on the foregoing, there can be no question as to whether the subject records are relevant to Plaintiff Pereida's claims for damages, in addition to his allegations of liability for the collision.

However, the question now becomes proper service. Defendant admittedly did not serve Plaintiff with the Notice to Consumer five days prior to serving ARMC. Defendant served Plaintiff on the same day. Defendant cites to *Terry v. SLICO* (2009) 175 Cal.App.4th 352, 356 which states:

In the case of a trial subpoena, section 1985, subdivision (b) requires that “[a] copy of an affidavit shall be served with a subpoena duces tecum issued before trial, showing good cause for the production of the matters and things described in the subpoena, specifying the exact matters or things desired to be produced, setting forth in full detail the materiality thereof to the issues involved in the case, and stating that the witness has the desired matters or things in his or her possession or under his or her control.” The first sentence of section 1987.5 provides that service of such a subpoena without a copy of the affidavit is invalid.

Although the general provisions of the Code of Civil Procedure dealing with the issuance of subpoenas, section 1985 et seq., apply to deposition subpoenas as well as to trial subpoenas, they do so only to the extent that those provisions are not modified by provisions in the nonparty discovery chapter of the Civil Discovery Act, section 2020.010 et seq. (§ 2020.030.)

However, the plain language of §1985.3, subd. (b) (3), expressly sets forth the requirement: “(3) At least five days prior to service upon the custodian of the records, plus the additional time provided by Section 1013 if service is by mail” which was admittedly not complied with in this action. Code Civ. Proc., §1985 and the Civil Discovery Act do not modify this requirement, and Defendants have not cited a case otherwise. Defendants failed to comply with the mandatory requirements of Code Civ. Proc., §1985.3, subd. (b)(3), and this is the basis of the court's intent to grant the motion to quash the trial subpoenas without prejudice.

### **TENTATIVE RULING**

The motion to quash is granted without prejudice to Gallorobles re-issuing the subject subpoenas and timely serving an appropriate consumer notice as required by Code Civ. Proc., §1985.3.